

ORIGINAL

(S E R V E D)
(November 5, 2004)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

November 5, 2004

DOCKET NO. 04-07

TRANS-NET, INC.

v.

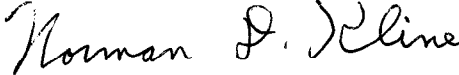
FESCO OCEAN MANAGEMENT LIMITED

NOTICE OF ORAL ARGUMENT

Oral argument on respondent's motions will be heard beginning at 11:00 a.m. EST in Room 1034 (Commissioners' Conference Room) on Monday, November 8, 2004.

The main purpose of the argument is to clarify matters as explained in my ruling served October 26, 2004, and to ensure that my final rulings on the respondent's two motions will be supported by an adequate record. Counsel should examine the list of sections of the Shipping Act of 1984 set forth on page 7 of that ruling that will be discussed.

Among the matters to be discussed will be the effect that should be given to certain letters sent to Congress by the Chairman and their impact on the legal question of FOML's status. Also, there will be discussion of the practical problems of litigating issues of damages, assuming that the complaint survives the motions, in view of FOML's arguments about the cost and burden of proving damages and the problem of confidentiality of FOML's service contracts that complainant alleges have not been followed as required by law. Other matters will be discussed as indicated by my ruling cited above.


Norman D. Kline
Administrative Law Judge